

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JAMES KING, GODFREY ANDRIES, and SHANEQUA
PETERSON,

Plaintiff,

-against-

CITY OF NEW YORK; NYPD DET. ALEJANDRO
VALDERRAMA, Shield No. 2519, NYPD SGT.
GREGORY JONES, Shield No. 3838, NYPD P.O.
KENNETH ANDERSON, Shield No. 20151, and NYPD
Officers JOHN and JANE DOE 1 through 10, all defendants
individually and in their official capacities,

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Bronx
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
October 9, 2020

Katherine E. Smith, Esq.
LAW OFFICE OF K.E. SMITH
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TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NYPD DET. ALEJANDRO VALDERRAMA, Shield No. 2519, Narcotics Division, 1 Police Plaza, New York, NY 10038

SGT. GREGORY JONES, Shield No. 3838, Assigned Criminal Intelligence Section, 1 Police Plaza, Room 1108, New York, NY 10038

NYPD P.O. KENNETH ANDERSON, Shield No. 20151, 77 PRECINCT, 127 Utica Ave, Brooklyn, NY 11213

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JAMES KING, GODFREY ANDRIES, and SHANEQUA
PETERSON,

Plaintiff,

VERIFIED COMPLAINT

-against-

Jury Trial Demanded

CITY OF NEW YORK; NYPD DET. ALEJANDRO
VALDERRAMA, Shield No. 2519, NYPD SGT.
GREGORY JONES, Shield No. 3838, NYPD P.O.
KENNETH ANDERSON, Shield No. 20151, and
NYPD Officers JOHN and JANE DOE 1 through 10,
all defendants individually and in their official
capacities,

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.

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PLAINTIFFS JAMES KING, GODFREY ANDRIES, and SHANEQUA PETERSON by
PLAINTIFF'S attorney, the LAW OFFICE OF KATHERINE E. SMITH, complaining of the
defendants, respectfully alleges as follows:

FACTS

1. PLAINTIFFS JAMES KING, GODFREY ANDRIES, and SHANEQUA
PETERSON, are residents of KINGS County in the City and State of New York.

2. PLAINTIFF JAMES KING is an African American male and was thirty-one (31)
at the time of the incident alleged herein.

3. PLAINTIFF GODFREY ANDRIES is an African American male and was
thirty-three (33) years old at the time of the incident alleged herein.

4. PLAINTIFF SHANEQUA PETERSON is an African American female and was twenty-six (26) years old at the time of the incident alleged herein.

5. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

6. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

7. At all times relevant defendants, NYPD DET. ALEJANDRO VALDERRAMA, Shield No. 2519; NYPD SGT. GREGORY JONES, Shield No. 3838; NYPD P.O. KENNETH ANDERSON, Shield No. 20151; and NYPD Defendants, John & Jane Doe 1 through 10, (“Doe Defendants”) were police officers, detectives or supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10. All defendants are sued in their individual and official capacities.

8. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

9. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

10. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

STATEMENT OF FACTS

11. On or about January 13, 2018, at or around 6 a.m., PLAINTIFFS KING and PETERSON were lawfully within one apartment in the 167 Schenectady Avenue, Brooklyn, New York, 11213, which is a three-family home.

12. PLAINTIFF ANDRIES was not present at the location, and did not otherwise reside there.

13. Specifically, several unidentified New York City Police Officers, including defendants VALDERRAMA, ANDERSON and the DOE defendants, unlawfully entered and searched the entire three family premises, consisting of several residences.

14. Defendants allegedly recovered contraband secreted from within the building.

15. Notwithstanding the fact that defendants had no probable cause to believe that PLAINTIFFS had committed any crimes or offenses, defendants placed PLAINTIFFS KING and PETERSON into handcuffs and under arrest, along with other occupants of the building.

16. On or about approximately 2:00 p.m. of January 13, 2018, PLAINTIFF ANDRIES had come to visit his girlfriend, PETERSON, within the vicinity of 167 Schenectady Avenue, Brooklyn, New York.

17. When ANDRIES arrived at the location, Defendants were still present at the after the early morning raid; there is no dispute that PLAINTIFF ANDRIES was not present when Defendants initially entered and searched the location.

18. Defendants placed PLAINTIFF ANDRIES into handcuffs and under arrest despite the fact that they had no legal basis to support his arrest whatsoever.

19. Indeed, PLAINTIFF ANDRIES was not a resident of the above referenced premises, and the police had no reason to believe that he resided there.

20. At the precinct the officers, including defendants VALDERRAMA, ANDERSON, and JONES falsely informed employees of the Brooklyn County District Attorney's Office ("DA's Office") that they had observed PLAINTIFFS commit various crimes/offenses.

21. The allegations made by defendants to the DA's office were false, and the defendants knew them to be false at the time the defendants made the allegations.

22. The defendants knew and understood that the DA's Office was relying on the truthfulness of defendants' claims and statements in order to evaluate whether to commence a criminal prosecution against the PLAINTIFFS. Defendants were aware that the DA's Office assumed that all of the factual statements, claims and allegations that defendants relayed to the DA's Office were truthful in all material respects.

23. From the precinct, PLAINTIFFS were then transported to Central Booking.

24. After making several court appearances, PLAINTIFF KING's criminal case was subsequently dismissed on or about December 5, 2018.

25. PLAINTIFFS PETERSON and ANDRIES had appeared in court as required, and on June 15, 2018, their criminal cases were dismissed.

26. As a result of the malicious prosecution, PLAINTIFFS PETERSON lost her job as a home health aid with Select Care Home Care Services.

27. PLAINTIFFS suffered damage as a result of defendants' actions. PLAINTIFFS were deprived of liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and reputational damage.

FIRST CLAIM
UNDER N.Y. STATE and FEDERAL LAW
FALSE ARREST/IMPRISONMENT

28. PLAINTIFFS repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

29. Defendant police officers arrested PLAINTIFFS in the absence of probable cause and without a valid warrant.

30. As a result of the aforesaid conduct by defendants, PLAINTIFFS were subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

31. As a result of the foregoing false imprisonment, PLAINTIFFS' liberty was restricted for an extended period of time, PLAINTIFFS were put in fear for PLAINTIFFS' safety, was humiliated and subjected to handcuffing and other physical restraints.

32. PLAINTIFFS were conscious of said confinement and did not consent to same.

33. The confinement of PLAINTIFFS were without probable cause and was not otherwise privileged.

34. As a result of the aforementioned conduct, PLAINTIFFS have suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

SECOND CLAIM
UNDER N.Y. STATE LAW AND FEDERAL LAW
MALICIOUS ABUSE OF PROCESS

35. PLAINTIFFS repeats and realleges each and every allegation as if fully set forth herein.

36. The individual defendants issued legal process to place PLAINTIFFS under arrest.

37. The Municipal Defendants arrested PLAINTIFFS in order to obtain collateral objectives outside the legitimate ends of the legal process.

38. The Municipal Defendants acted with intent to do harm to PLAINTIFFS without excuse or justification.

39. As a direct and proximate result of this unlawful conduct, PLAINTIFFS sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

THIRD CLAIM
UNDER N.Y. STATE AND FEDERAL LAW
MALICIOUS PROSECUTION

40. PLAINTIFFS repeats and realleges each and every allegation as if fully set forth herein.

41. By their conduct, as described herein, defendants are liable to PLAINTIFFS for having committed malicious prosecution under the laws of the State of New York.

42. Defendants maliciously commenced criminal proceedings against PLAINTIFFS. Defendants falsely and without probable cause charged PLAINTIFFS with violations of the laws of the State of New York.

43. The commencement and continuation of the criminal proceedings against PLAINTIFFS were malicious and without probable cause.

44. All charges were terminated in PLAINTIFFS' favor.

45. PLAINTIFFS suffered post-arraignment deprivation of freedom: they were required to attend many court appearances to defense against the criminal charges.

46. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFFS. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

47. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFFS sustained the damages alleged herein.

FOURTH CLAIM
UNDER FEDERAL LAW
DEPRIVATION OF FEDERAL RIGHTS

48. PLAINTIFFS repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

49. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

50. All of the aforementioned acts deprived PLAINTIFFS of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth

Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

51. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

52. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

53. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

FIFTH CLAIM
UNDER FEDERAL LAW
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

54. PLAINTIFFS repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

55. Defendants created false evidence against PLAINTIFFS.

56. Defendants forwarded false evidence and false information to prosecutors in the Kings County District Attorney office.

57. Defendants misled the prosecutors by creating false evidence against PLAINTIFFS and thereafter providing false testimony throughout the criminal proceedings.

58. In creating false evidence against PLAINTIFFS, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFFS' constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

59. As a result of the foregoing, PLAINTIFFS' liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM
UNDER NEW YORK STATE AND FEDERAL LAW
UNLAWFUL ENTRY, SEARCH, AND SEIZURE

60. PLAINTIFFS repeats and realleges each and every allegation as if fully set forth herein.

61. As a result of the aforesaid conduct by defendants, the residence and persons of PLAINTIFFS and possessions were illegally and improperly seized and searched, and strip-searched, without consent, a valid warrant, probable cause, privilege or consent, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

SEVENTH CLAIM
UNDER FEDERAL LAW
FAILURE TO INTERVENE

62. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

63. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such

conduct, had a duty to intervene and prevent such conduct and failed to intervene.

64. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

65. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

EIGHTH CLAIM
UNDER STATE LAW
ASSAULT and BATTERY

66. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

67. Defendants' aforementioned actions placed PLAINTIFF in apprehension of imminent harmful and offensive bodily contact.

68. Defendant police officers touched PLAINTIFF in a harmful and offensive manner.

69. Defendant police officers did so without privilege or consent from PLAINTIFF.

70. As a result of defendants' conduct, PLAINTIFF has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

NINTH CLAIM
UNDER STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

71. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

72. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

73. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

74. Due to the negligence of the defendants as set forth above, PLAINTIFF suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

TENTH CLAIM
UNDER N.Y. STATE AND FEDERAL LAW
MUNICIPAL LIABILITY

75. PLAINTIFFS repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

76. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

77. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover

up police misconduct; and,

- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures, and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

78. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFFS.

79. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFFS as alleged herein.

80. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the PLAINTIFFS as alleged herein.

81. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFFS' constitutional rights.

82. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFFS' constitutional rights.

83. The acts complained of deprived the PLAINTIFFS of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and

D. To receive equal protection under the law.

WHEREFORE, PLAINTIFFS respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
October 9, 2020



Katherine E. Smith
233 Broadway, Ste. 900
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

KATHERINE E. SMITH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of THE LAW OFFICE OF KATHERINE E. SMITH the attorney for PLAINTIFF JAMES KING, GODFREY ANDRIES, and SHANEQUA PETERSON, in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the PLAINTIFF is that the PLAINTIFF is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
October 9, 2020



Katherine E. Smith